

FACILITIES SERVICES AGREEMENT

FAC-008

Between Cedar Retail Pvt Ltd and PowerHarbor Critical Energy Services Pvt Ltd

FICTIONAL DEVELOPMENT DOCUMENT

This agreement is a realistic fictional development document. It is not evidence of a real procurement, signature, authority, invoice, or payment. No signature shown below is intended to be a real signature.

1. Parties and key terms

Customer	Cedar Retail Pvt Ltd (the retailer operates 40 stores in India)
Service provider	PowerHarbor Critical Energy Services Pvt Ltd
Agreement status	EXECUTED
Effective date	2027-01-01
End date	2029-12-31
Currency	INR, amounts exclusive of GST unless stated
Commercial model	annual_fixed_fee_plus_fuel_and_parts
Notice period	120 calendar days

The schedules, service levels, pricing schedule, safety obligations, and signed amendment (if any) form one agreement. If a conflict exists, a later signed amendment controls only the expressly amended subject.

2. Scope, locations and service boundaries

Generator sets, automatic transfer switches, UPS units, and battery banks at 24 stores, the distribution centre, and two offices; the remaining 16 stores have no covered backup plant.

Included service activities

The vendor shall plan, resource, deliver, supervise, and evidence the backup generator and ups maintenance service at each listed site. Site access is during Cedar's published trading, receiving, and maintenance windows. Cedar will identify a site contact, provide safe access, and promptly communicate closures or refurbishment work.

Location control

The location list is the controlled baseline. A new store, relocation, closure, or material change in operating hours requires a written change order describing the start date, price, staffing, and service impact. Informal instructions do not increase the committed fee. The vendor must maintain a current location register and report any access constraint on the same business day.

Exclusions and dependencies

The fixed fee covers the recurring service described in this document. Diesel fuel, battery replacement, major alternator work, and load-bank hire are excluded. Emergency attendance is INR 14,000 per visit; fuel is reimbursed at invoice cost with delivery evidence. Cedar remains responsible for building utilities, access badges, safe working areas, and timely approvals. The vendor remains responsible for its personnel, tools, ordinary PPE, supervision, and statutory licences.

Records

Service logs identify date, site, staff, work performed, exceptions, photographs where appropriate, and customer sign-off. Records are retained for seven years after the end date, subject to a longer statutory period. Cedar may inspect records on five business days' notice or immediately following an incident.

3. Staffing, service levels and acceptance

A named electrical engineer, four city technicians, and a 24-hour duty manager. Technicians must hold electrical safety and battery-handling training.

Service levels

Monthly visual inspection, quarterly load-bank test, six-hour response to critical failure, quarterly battery health report, and 98% availability for covered assets.

Continuity

The vendor shall maintain a written roster, relief coverage, escalation contacts, and business-continuity plan. A shortage, strike, vehicle issue, or equipment failure does not excuse performance without prompt notice and a recovery plan. Cedar may request replacement of personnel for documented safety, conduct, or competency reasons.

Measurement and service credits

Cedar measures completion against site logs, ticket timestamps, attendance records, and agreed inspection reports. If a monthly service level is missed, the vendor has five business days to correct the failure. Repeated misses may earn a service credit of 2% of the affected monthly fee per failed month, capped at 10%, without limiting termination for material breach.

Acceptance

A site contact's signature confirms receipt of the service report, not waiver of a latent defect. Cedar must raise an apparent service objection within 10 calendar days after receipt. The vendor must close corrective actions with evidence and root cause where the same failure recurs.

4. Health, safety, environment and compliance

Electrical isolation, earthing checks, fuel spill controls, battery ventilation, fire watch during hot work, and diesel storage records are mandatory.

General duties

Each party will comply with applicable law, site rules, labour and social-security requirements, fire and environmental requirements, and lawful instructions of an authority having jurisdiction. The vendor will maintain licences, training evidence, insurance, risk assessments, method statements, and incident records relevant to the service.

Incident and escalation process

An imminent danger, injury, property damage, environmental release, security event, or statutory notice must be reported to Cedar immediately by telephone and in writing within four hours. The vendor will make the area safe, preserve evidence, cooperate with investigation, and provide a corrective-action plan within two business days.

Personnel and site conduct

Personnel must wear identification and required PPE, follow induction and access controls, protect customer and employee information, and never obstruct emergency egress. Subcontracting requires Cedar's prior written approval; approved subcontractors remain under the vendor's responsibility and must meet the same controls.

Environmental practices

Waste, chemicals, fuel, refrigerant, batteries, and other controlled material must be stored, handled, transported, and disposed of under applicable requirements. The vendor provides manifests or disposal evidence where the service creates a regulated stream.

5. Pricing schedule and invoicing

All amounts below are INR and exclusive of GST. GST will be added at the applicable rate against a valid tax invoice. The committed base is the fixed amount Cedar expects to pay for the stated term; optional or variable charges require the stated trigger and approval.

Fixed annual fee schedule

Period	Base fee (ex GST)
2027-01-01 to 2027-12-31	INR 2,940,000
2028-01-01 to 2028-12-31	INR 3,028,200
2029-01-01 to 2029-12-31	INR 3,119,046
One-time setup / mobilisation	INR 425,000

Optional and variable charges

Diesel fuel, battery replacement, major alternator work, and load-bank hire are excluded. Emergency attendance is INR 14,000 per visit; fuel is reimbursed at invoice cost with delivery evidence.

Escalation

3% annual escalation applies from 2028-01-01 and is included in the stated schedule.

Invoice controls

Annual fee is billed quarterly in advance and paid within 30 days. Fuel and parts require a work order, meter reading, and supporting supplier invoice.

No charge may be introduced by email, timesheet, or vendor rate card alone. Approved variable work must state site, quantity, rate, tax treatment, purchase order or written authorization, and supporting evidence.

6. Governance, reporting and audit

The vendor's account manager and Cedar's facilities lead meet monthly for operational review. The agenda covers service-level results, open tickets, incidents, staffing, safety observations, invoice exceptions, planned works, and changes to the location register.

Reporting pack

The monthly pack includes a site-level completion matrix, exception log, attendance or route evidence, incident and near-miss summary, corrective-action tracker, approved variation register, and next-month plan. Where a metric is unavailable, the vendor must label it unavailable and explain the reason rather than estimate performance.

Audit and access

Cedar may audit relevant books, training, licences, subcontractor controls, and service evidence on five business days' notice during normal working hours. Following a serious incident, regulator request, or suspected fraud, Cedar may conduct a proportionate expedited audit. Each party bears its own audit cost unless a material non-compliance is confirmed.

Data and confidentiality

Business information, site layouts, access data, employee details, CCTV-adjacent information, and customer information are confidential. The vendor may use them only to perform the service, limits access to need-to-know personnel, and promptly reports a suspected data incident. Personal data is returned or securely deleted when no longer required, subject to legal retention.

Change control

A change request must state the requested change, rationale, affected locations, timing, service-level effect, one-time and recurring price, assumptions, and approvals. The existing service continues while the request is evaluated. A signed change order is the only basis for an altered committed fee.

7. Term, renewal, termination and legal terms

Term and renewal

The stated term is 2027-01-01 through 2029-12-31. The parties may extend the agreement for a further two years only by mutual written agreement signed before the stated expiry; it does not renew automatically.

Termination for cause

Either party may terminate for material breach not cured within 30 calendar days after written notice, insolvency, loss of a required licence, serious safety breach, or repeated service-level failure. Cedar may suspend unsafe work immediately. On termination, the vendor hands over records, keys, permits, open tickets, and safe site status and removes its equipment without disrupting store operations.

Convenience and liability

Cedar may terminate for convenience on 60 calendar days' notice; the parties will reconcile accepted services and approved non-cancellable commitments through the termination date. Each party is responsible for its own negligence, wilful misconduct, breach of confidentiality, and legal violations. Neither party is liable for indirect loss; the aggregate liability cap is two times fees paid or payable in the preceding 12 months, with customary carve-outs for fraud, death or personal injury, confidentiality, data misuse, and indemnified third-party claims.

Disputes and notices

Operational disputes go first to the account managers, then to senior representatives for 15 days. Unresolved disputes are subject to the courts of Bengaluru, India, and Indian law. Notices must be written and delivered to the legal addresses in the execution page by acknowledged courier or email with delivery confirmation.

8. Amendment, schedules and execution

Amendment 1 / bundled change record

Amendment 1 dated 2026-09-15 adds pre-commencement asset verification and a no-charge emergency drill for the distribution centre.

This bundled amendment is part of this fictional development document. It changes the agreement only to the extent expressly described above. It does not create a new signature, invoice, approval, or real-world commitment.

Schedules

Exhibit A - controlled location and asset register. Exhibit B - service-level matrix and reporting template. Exhibit C - approved rates for optional work and call-outs. The schedules are illustrative and must be reconciled to Cedar's actual procurement records before any operational use.

Issue and interpretation note

No unresolved issue identified in the authored terms.

Entire agreement

This document and its expressly incorporated schedules record the fictional commercial understanding. A waiver is effective only when written. If any provision is invalid, the remainder continues. Counterparts and electronic signatures are permitted only where legally valid and actually authorized.

Cedar Retail Pvt Ltd	Authorized signatory: _____ Date: _____
PowerHarbor Critical Energy Services Pvt Ltd	Authorized signatory: _____ Date: _____
Document control	FAC-008 Version 1.0 Prepared 2026-09-30 Fictional development document

The blank signature lines are intentionally not fabricated signatures.